

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3982

By: Turner of the House

and

7 **Hall** of the Senate

8
9
10 COMMITTEE SUBSTITUTE

11 An Act relating to motor vehicles; amending 47 O.S.
12 2021, Section 1102, as last amended by Section 5,
13 Chapter 236, O.S.L. 2024 (47 O.S. Supp. 2025, Section
14 1102), which relates to definitions; defining term;
15 amending 47 O.S. 2021, Section 1112.2, as last
16 amended by Section 6, Chapter 236, O.S.L. 2024 (47
17 O.S. Supp. 2025, Section 1112.2), which relates to
18 transferability of license plates; requiring certain
19 attestation; requiring and providing for issuance
20 nonresident in-transit temporary license plate;
21 requiring proof of residency; requiring and providing
22 for issuance commercial fleet temporary license
23 plate; requiring certain information be provided;
24 amending 47 O.S. 2021, Section 1137.1, as last
 amended by Section 19, Chapter 330, O.S.L. 2025 (47
 O.S. Supp. 2025, Section 1137.1), which relates to
 used dealer temporary license plate; requiring
 certain attestation; requiring and providing for
 issuance nonresident in-transit temporary license
 plate; requiring certain proof be presented; amending
 47 O.S. 2021, Section 1137.3, as last amended by
 Section 13, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
 2025, Section 1137.3), which relates to registration
 and licensing of new motor vehicle, trailer, or
 powersports vehicle; requiring certain attestation;
 requiring and providing for issuance nonresident in-
 transit temporary license plate; requiring proof of

1 residency; requiring and providing for issuance
2 commercial fleet temporary license plate; requiring
3 certain information be provided; and providing an
4 effective date.

5
6 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

7 SECTION 1. AMENDATORY 47 O.S. 2021, Section 1102, as
8 last amended by Section 5, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
9 2025, Section 1102), is amended to read as follows:

10 Section 1102. As used in the Oklahoma Vehicle License and
11 Registration Act:

12 1. "All-terrain vehicle" means a vehicle manufactured and used
13 exclusively for off-highway use traveling on four or more non-
14 highway tires, and being fifty (50) inches or less in width;

15 2. "Carrying capacity" means the carrying capacity of a vehicle
16 as determined or declared in tons of cargo or payload by the owner;
17 provided, that such declared capacity shall not be less than the
18 minimum tonnage capacity fixed, listed or advertised by the
19 manufacturer of any vehicle;

20 3. "Certificate of title" means a document which is proof of
21 legal ownership of a motor vehicle as described and provided for in
22 Section 1105 of this title;

23 4. "Chips and oil" or the term "road oil and crushed rock"
24 means, with respect to materials authorized for use in the surfacing

1 of roads or highways as provided for in this title or in any
2 equivalent statute pertaining to road or highway surfacing in this
3 state, any asphaltic materials. Wherever chips and oil or road oil
4 and crushed rock are authorized for use in the surfacing of roads or
5 highways in this state, whether by the Department of Transportation,
6 or by the county commissioners, or other road building authority
7 subject to the Oklahoma Vehicle License and Registration Act,
8 asphaltic materials are also authorized for use in such surfacing
9 and construction;

10 5. "Combined laden weight" means the weight of a truck or
11 station wagon and its cargo or payload transported thereon, or the
12 weight of a truck or truck-tractor plus the weight of any trailers
13 or semitrailers together with the cargo or payload transported
14 thereon;

15 6. "Commercial trailer" means any trailer, as defined in
16 Section 1-180 of this title, or semitrailer, as defined in Section
17 1-162 of this title, when such trailer or semitrailer is used
18 primarily for business or commercial purposes;

19 7. "Commercial trailer dealer" means any person, firm or
20 corporation engaged in the business of selling any new and unused,
21 or used, or both new and used commercial trailers;

22 8. "Commercial vehicle" means any vehicle over eight thousand
23 (8,000) pounds combined laden weight used primarily for business or
24 commercial purposes. Each motor vehicle being registered pursuant

1 to the provisions of this section shall have the name of the
2 commercial establishment or the words "Commercial Vehicle"
3 permanently and prominently displayed upon the outside of the
4 vehicle in letters not less than two (2) inches high. Such letters
5 shall be in sharp contrast to the background and shall be of
6 sufficient shape and color as to be readily legible during daylight
7 hours, from a distance of fifty (50) feet while the vehicle is not
8 in motion;

9 9. "Commission" or "Tax Commission" means the Oklahoma Tax
10 Commission;

11 10. "Construction machinery" means machines or devices drawn as
12 trailers which are designed and used for construction, tree trimming
13 and waste maintenance projects, which derive no revenue from the
14 transportation of persons or property, whose use of the highway is
15 only incidental and which are not mounted or affixed to another
16 vehicle; provided, construction machinery shall not include
17 implements of husbandry as defined in Section 1-125 of this title;

18 11. "Dealer" means any person, firm, association, corporation
19 or trust that sells, solicits or advertises the sale of new and
20 unused motor vehicles and holds a bona fide contract or franchise in
21 effect with a manufacturer or distributor of a particular make of
22 new or unused motor vehicle or vehicles for the sale of same;

23 12. "Dealer seller" means a new motor vehicle dealer as defined
24 in Section 562 of this title, a powersports vehicle dealer as

1 defined in Section 562 of this title, and used motor vehicle dealer
2 as defined in Section 581 of this title. This definition shall not
3 include individuals involved in a private sale as defined in this
4 section;

5 13. "Mini-truck" means a foreign-manufactured import or
6 domestic-manufactured vehicle powered by an internal combustion
7 engine with a piston or rotor displacement of one thousand cubic
8 centimeters (1,000 cc) or less, which is sixty-seven (67) inches or
9 less in width, with an unladen dry weight of three thousand four
10 hundred (3,400) pounds or less, traveling on four or more tires,
11 having a top speed of approximately fifty-five (55) miles per hour,
12 equipped with a bed or compartment for hauling, and having an
13 enclosed passenger cab;

14 14. "Interstate commerce" means any commerce moving between any
15 place in a state and any place in another state or between places in
16 the same state through another state;

17 15. "Laden weight" means the combined weight of a vehicle when
18 fully equipped for use and the cargo or payload transported thereon;
19 provided, that in no event shall the laden weight be less than the
20 unladen weight of the vehicle fully equipped for use, plus the
21 manufacturer's rated carrying capacity;

22 16. "Local authorities" means every county, municipality or
23 local board or body having authority to adopt police regulations
24 under the Constitution and laws of this state;

1 17. "Low-speed electrical vehicle" means any four-wheeled
2 electrical vehicle that is powered by an electric motor that draws
3 current from rechargeable storage batteries or other sources of
4 electrical current and whose top speed is greater than twenty (20)
5 miles per hour but not greater than twenty-five (25) miles per hour
6 and is manufactured in compliance with the National Highway Traffic
7 Safety Administration standards for low-speed vehicles in 49 C.F.R.,
8 Section 571.500;

9 18. "Manufactured home" means a residential dwelling built in
10 accordance with the National Manufactured Housing Construction and
11 Safety Standards Act of 1974, 42 U.S.C., Section 5401 et seq., and
12 rules promulgated pursuant thereto and the rules promulgated by the
13 Oklahoma Used Motor Vehicle, Dismantler, and Manufactured Housing
14 Commission pursuant to Section 582 of this title. Manufactured home
15 shall not mean a park model recreational vehicle as defined in this
16 section;

17 19. "Manufactured home dealer" means any person, firm or
18 corporation engaged in the business of selling any new and unused,
19 or used, or both new and used manufactured homes. Such information
20 and a valid franchise letter as proof of authorization to sell any
21 such new manufactured home product line or lines shall be attached
22 to the application for a dealer license to sell manufactured homes.
23 Manufactured home dealer shall not include any person, firm or
24 corporation who sells or contracts for the sale of the dealer's own

1 personally titled manufactured home or homes. No person, firm or
2 corporation shall be considered a manufactured home dealer as to any
3 manufactured home purchased or acquired by such person, firm or
4 corporation for purposes other than resale; provided, that the
5 restriction set forth in this sentence shall not prevent an
6 otherwise qualified person, firm or corporation from utilizing a
7 single manufactured home as a sales office;

8 20. "Medium-speed electrical vehicle" means any self-propelled,
9 electrically powered four-wheeled motor vehicle, equipped with a
10 roll cage or crush-proof body design, whose speed attainable in one
11 (1) mile is more than thirty (30) miles per hour but not greater
12 than thirty-five (35) miles per hour;

13 21. "Licensed operator" means any person licensed by the
14 Service Oklahoma Operator Board or designated or authorized to
15 collect the fees and enforce the provisions related to the
16 fulfillment of designated services to be rendered by Service
17 Oklahoma;

18 22. "New vehicle" or "unused vehicle" means a vehicle which has
19 been in the possession of the manufacturer, distributor or
20 wholesaler or has been sold only by the manufacturer, distributor or
21 wholesaler to a dealer;

22 23. "Nonresident" means any person who is not a resident of
23 this state;

1 24. "Off-road motorcycle" means any motorcycle, as defined in
2 Section 1-135 of this title, when such motorcycle has been
3 manufactured for and used exclusively off roads, highways and any
4 other paved surfaces;

5 25. "Owner" means any person owning, operating or possessing
6 any vehicle herein defined;

7 26. "Park model recreational vehicle" means a vehicle that is:

- 8 a. designed and marketed as temporary living quarters for
9 camping, recreational, seasonal or travel use,
- 10 b. not permanently affixed to real property for use as a
11 permanent dwelling,
- 12 c. built on a single chassis mounted on wheels with a
13 gross trailer area not exceeding four hundred (400)
14 square feet in the setup mode, and
- 15 d. certified by the manufacturer as complying with
16 standard A119.5 of the American National Standards
17 Institute, Inc.;

18 27. "Person" means any individual, copartner, joint venture,
19 association, corporation, limited liability company, estate, trust,
20 business trust, syndicate, the State of Oklahoma, Service Oklahoma,
21 or any county, city, municipality, school district or other
22 political subdivision thereof, or any group or combination acting as
23 a unit, or any receiver appointed by the state or federal court;

1 28. "Pre-registration" means the submission of requisite
2 information and documentation to Service Oklahoma or a licensed
3 operator within two (2) business days following the sale or transfer
4 of a motor vehicle, as required by Section 1112.2 of this title;

5 29. "Private sale" means the sale or transfer of a motor
6 vehicle where neither the seller nor the purchaser is a dealer
7 seller as defined in this section;

8 30. "Rebodied vehicle" means a vehicle:

- 9 a. which has been assembled using a new body or new major
10 component which is of the identical type as the
11 original vehicle and is licensed by the manufacturer
12 of the original vehicle and other original, new or
13 reconditioned parts. For purposes of this paragraph,
14 "new body or new major component" means a new body,
15 cab, frame, front end clip or rear end clip,
16 b. which is not a salvage, rebuilt, or junked vehicle as
17 defined by paragraph 1, 2, or 6 of subsection A of
18 Section 1105 of this title, and
19 c. for which Service Oklahoma has assigned or will assign
20 a new identifying number;

21 31. "Recreational off-highway vehicle" means a vehicle
22 manufactured and used exclusively for off-highway use, traveling on
23 four or more non-highway tires, and being sixty-five (65) inches or
24 less in width;

1 32. "Recreational vehicle" means every vehicle which is built
2 on or permanently attached to a self-propelled motor chassis or
3 chassis cab which becomes an integral part of the completed vehicle
4 and is capable of being operated on the highways. In order to
5 qualify as a recreational vehicle pursuant to this paragraph such
6 vehicle shall be permanently constructed and equipped for human
7 habitation, having its own sleeping and kitchen facilities,
8 including permanently affixed cooking facilities, water tanks and
9 holding tank with permanent toilet facilities. Recreational vehicle
10 shall not include manufactured homes or any vehicle with portable
11 sleeping, toilet and kitchen facilities which are designed to be
12 removed from such vehicle. Recreational vehicle shall include park
13 model recreational vehicles as defined in this section;

14 33. "Remanufactured vehicle" means a vehicle which has been
15 assembled by a vehicle remanufacturer using a new body and which may
16 include original, reconditioned, or remanufactured parts, and which
17 is not a salvage, rebuilt, or junked vehicle as defined by
18 paragraphs 1, 2, and 6, respectively, of subsection A of Section
19 1105 of this title;

20 34. "Rental trailer" means all small or utility trailers or
21 semitrailers constructed and suitable for towing by a passenger
22 automobile and designed only for carrying property, when the
23 trailers or semitrailers are owned by, or are in the possession of,
24 any person engaged in renting or leasing such trailers or

1 semitrailers for intrastate or interstate use or combined intrastate
2 and interstate use;

3 35. "Special mobilized machinery" means special purpose
4 machines or devices, either self-propelled or drawn as trailers or
5 semitrailers, which derive no revenue from the transportation of
6 persons or property, whose use of the highway is only incidental,
7 and whose useful revenue producing service is performed at
8 destinations in an area away from the traveled surface of an
9 established open highway;

10 36. "State" means the State of Oklahoma;

11 37. "Station wagon" means any passenger vehicle which does not
12 have a separate luggage compartment or trunk and which does not have
13 open beds, and has one or more rear seats readily lifted out or
14 folded, whether same is called a station wagon or ranch wagon;

15 38. "Street-legal utility vehicle" means a vehicle meeting the
16 description and specifications of Section 1-171.1 of this title;

17 39. "Temporary decal" means the decal issued by Service
18 Oklahoma or a licensed operator to be affixed to a license plate and
19 valid for the period of time between the pre-registration of a motor
20 vehicle, pursuant to the requirements of Section 1112.2 of this
21 title, and the registration thereof;

22 40. "Temporary license plate" means the temporary license plate
23 placed on the motor vehicle, travel trailer, or commercial trailer
24 by the licensed dealer pursuant to Sections 1137.1 and 1137.3 or

1 this title. This definition includes the temporary license plate
2 valid for ten (10) days, the sixty-day nonresident in-transit
3 temporary license plate, and the ninety-day commercial fleet
4 temporary license plate.

5 41. "Travel trailer" means any vehicular portable structure
6 built on a chassis, used as a temporary dwelling for travel,
7 recreational or vacational use, and, when factory-equipped for the
8 road, it shall have a body width not exceeding eight (8) feet and an
9 overall length not exceeding forty (40) feet, including the hitch or
10 coupling;

11 ~~41.~~ 42. "Travel trailer dealer" means any person, firm or
12 corporation engaged in the business of selling any new and unused,
13 or used, or both new and used travel trailers. Such information and
14 a valid franchise letter as proof of authorization to sell any such
15 new travel trailer product line or lines shall be attached to the
16 application for a dealer license to sell travel trailers. Travel
17 trailer dealer shall not include any person, firm or corporation who
18 sells or contracts for the sale of his or her own personally titled
19 travel trailer or trailers. No person, firm or corporation shall be
20 considered as a travel trailer dealer as to any travel trailer
21 purchased or acquired by such person, firm or corporation for
22 purposes other than resale;

23 ~~42.~~ 43. "Used motor vehicle dealer" means a used motor vehicle
24 dealer as defined in Section 581 of this title;

1 ~~43.~~ 44. "Used vehicle" means any vehicle which has been sold,
2 bargained, exchanged or given away, or used to the extent that it
3 has become what is commonly known, and generally recognized, as a
4 "secondhand" vehicle. This shall also include any vehicle other
5 than a remanufactured vehicle, regardless of age, owned by any
6 person who is not a dealer;

7 ~~44.~~ 45. "Utility vehicle" means a vehicle powered by an
8 internal combustion engine, manufactured and used exclusively for
9 off-highway use, equipped with seating for two or more people and a
10 steering wheel, traveling on four or more wheels;

11 ~~45.~~ 46. "Vehicle" means any type of conveyance or device in,
12 upon or by which a person or property is or may be transported from
13 one location to another upon the avenues of public access within the
14 state. Vehicle does not include bicycles, trailers except travel
15 trailers and rental trailers, or implements of husbandry as defined
16 in Section 1-125 of this title. All implements of husbandry used as
17 conveyances shall be required to display the owner's driver license
18 number or license plate number of any vehicle owned by the owner of
19 the implement of husbandry on the rear of the implement in numbers
20 not less than two (2) inches in height. The use of the owner's
21 Social Security number on the rear of the implement of husbandry
22 shall not be required; and

23 ~~46.~~ 47. "Vehicle remanufacturer" means a commercial entity
24 which assembles remanufactured vehicles.

1 SECTION 2. AMENDATORY 47 O.S. 2021, Section 1112.2, as
2 last amended by Section 6, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
3 2025, Section 1112.2), is amended to read as follows:

4 Section 1112.2. A. The license plate and certificate of
5 registration shall be issued to, and remain in the name of, the
6 owner of the vehicle registered and the license plates shall not be
7 transferable between motor vehicle owners. When a vehicle is sold
8 or transferred in the state, the following registration procedures
9 shall apply:

10 1. When a current and valid Oklahoma motor vehicle license
11 plate has been obtained for use on a motor vehicle and the vehicle
12 has been sold or otherwise transferred to a new owner, the license
13 plate shall be removed from the vehicle and retained by the original
14 plate owner;

15 2. In the event an owner purchases, trades, exchanges, or
16 otherwise acquires another vehicle of the same license registration
17 classification, Service Oklahoma shall authorize the transfer of the
18 current and valid license plate previously obtained by the owner to
19 the replacement vehicle for the remainder of the current
20 registration period. In the event the owner acquires a vehicle
21 requiring payment of additional registration fees, the owner shall
22 request a transfer of the license plate to the newly acquired
23 vehicle and pay the difference in registration fees. The fee shall
24

1 be calculated on a monthly prorated basis. The owner shall not be
2 entitled to a refund:

3 a. when the registration fee for the vehicle to which the
4 plate(s) is to be assigned is less than the
5 registration fee for that vehicle to which the license
6 plate(s) was last assigned, or

7 b. if the owner does not have or does not acquire another
8 vehicle to which the license plate may be transferred;

9 3. Except as provided in paragraph 4 of this subsection, in the
10 event the owner of a license plate or a dealer seller purchases,
11 trades, exchanges, or otherwise acquires a vehicle for which a
12 license plate has been issued during the current registration
13 period, and the license plate has not been removed by the previous
14 owner in accordance with this section, the new owner of the vehicle
15 shall remove and destroy or otherwise discard the license plate.
16 However, if the license plate has expired, the new owner shall not
17 be required to destroy or otherwise discard the license plate;

18 4. When a lender or lender's agent repossesses a vehicle and
19 the license plate has not been removed in accordance with this
20 section, the lender or lender's agent shall not be subject to the
21 provisions of this section and the license plate shall be considered
22 removable personal property and may be reclaimed from the
23 repossessed vehicle;

1 5. If a person purchases a motor vehicle from which the number
2 plates have been removed pursuant to this section, the person may
3 operate the motor vehicle for five (5) calendar days from the date
4 of purchase without number plates if a dated, notarized bill of sale
5 is carried in the motor vehicle. If the vehicle is subject to a
6 lien, the person may obtain a ten-day temporary plate issued either
7 from the dealer seller or by a licensed operator pursuant to the
8 promulgation of rules by Service Oklahoma; and

- 9 6. a. Within two (2) business days of the date of sale or
10 transfer of the motor vehicle, either the seller or
11 the purchaser of the motor vehicle shall complete the
12 pre-registration of the vehicle by submitting
13 documentation to Service Oklahoma or a licensed
14 operator identifying the motor vehicle subject to the
15 sale or transfer, purchaser information, and any
16 associated state-issued license plate on the vehicle.
17 Pre-registration may be accomplished either in person
18 at Service Oklahoma or a licensed operator location or
19 by means of an electronic transaction or online system
20 established by Service Oklahoma in accordance with
21 Section 1132B of this title. Service Oklahoma or the
22 licensed operator shall:
23 (1) provide information and instructions to the
24 purchaser to complete the registration

transaction as required by the Oklahoma Vehicle License and Registration Act,

(2) if no license plate was transferred to the motor vehicle as a result of the purchase or transfer, issue a license plate with a temporary decal to the purchaser, unless:

(a) the purchaser attests that such vehicle is to be titled or registered in a state other than Oklahoma and provides proof of out-of-state residency, in such case, no license plate shall be issued and instead a sixty-day nonresident in-transit temporary license plate shall be issued at the time of purchase upon presentment of proof of out-of-state residency to the dealer that is consistent with purchaser information submitted through pre-registration, or

(b) the purchaser attests that such commercial vehicle is to be titled or registered in a state other than Oklahoma and has a valid Manufacturer Fleet Number, in such case, no license plate shall be issued and instead a ninety-day commercial fleet temporary license plate shall be issued at the time of

1 purchase upon presentation of the valid

2 Manufacturer Fleet Number to the dealer, and

3 (3) if there was an existing license plate
4 transferred to the motor vehicle, issue a
5 temporary decal to the existing license plate,
6 and

7 b. upon the effective date of this act, Service Oklahoma
8 is authorized to set the licensed operator
9 compensation pursuant to Section 3-103 of this title
10 for processing the documentation submitted and issuing
11 the license plate and/or decal pursuant to this
12 subsection.

13 B. 1. The new owner of a motor vehicle shall, within two (2)
14 months from the date of vehicle purchase or acquisition, make
15 application to record the registration of the vehicle with Service
16 Oklahoma or the licensed operator and shall pay all taxes and fees
17 provided by law.

18 2. Any person failing to register a motor vehicle by timely
19 transferring the license plate as provided by this section shall pay
20 the penalty levied in Section 1132 of this title.

21 C. A surviving spouse, desiring to operate a vehicle devolving
22 from a deceased spouse, shall present an application for certificate
23 of title to Service Oklahoma or the licensed operator in his or her
24 name within two (2) months of obtaining ownership. Service Oklahoma

1 or the licensed operator shall then transfer the license plate to
2 the surviving spouse.

3 D. Service Oklahoma shall be authorized to promulgate such
4 rules as may be required to implement the license plate transfers
5 authorized by this section including, but not limited to, such rules
6 as may be required for a system under which the license plate is
7 registered to an individual and not a vehicle for all license plates
8 issued on or after July 1, 2019.

9 E. Service Oklahoma, the Oklahoma Motor Vehicle Commission and
10 the Oklahoma Used Motor Vehicle, Dismantler, and Manufactured
11 Housing Commission are authorized to enter into contracts and
12 agreements for the implementation of an electronic system to
13 facilitate the entry of required vehicle purchaser information on
14 new and used vehicle purchases and the issuance of temporary license
15 plates. Service Oklahoma and the Oklahoma Turnpike Authority are
16 authorized to enter into contracts and agreements to facilitate the
17 Oklahoma Turnpike Authority's access to an owner's vehicle
18 registration information used by the Oklahoma Turnpike Authority to
19 charge and collect tolls from owners of vehicles imaged using the
20 turnpike system, and to charge the Oklahoma Turnpike Authority for
21 services in connection with the Oklahoma Turnpike Authority's need
22 to access owner registration information at such rates and
23 miscellaneous costs as may be agreed to by Service Oklahoma and the
24 Oklahoma Turnpike Authority. Service Oklahoma, in cooperation with

1 the Oklahoma Turnpike Authority as provided in this subsection, and
2 appropriate state agencies, commissions, and other organizations, is
3 directed to develop, promote, and coordinate a public awareness
4 program to be utilized in making Oklahomans aware of the
5 requirements of this section.

6 SECTION 3. AMENDATORY 47 O.S. 2021, Section 1137.1, as
7 last amended by Section 19, Chapter 330, O.S.L. 2025 (47 O.S. Supp.
8 2025, Section 1137.1), is amended to read as follows:

9 Section 1137.1. A. Except for vehicles, travel trailers or
10 commercial trailers which display a current Oklahoma license tag,
11 upon the purchase or transfer of ownership of a used motor vehicle,
12 travel trailer or commercial trailer, including an out-of-state
13 purchase or transfer of the same, to a licensed used motor vehicle
14 dealer, wholesale used motor vehicle dealer, used travel trailer
15 dealer or used commercial trailer dealer, subsequently referred to
16 in this section as "dealer", the dealer shall affix a used dealer's
17 plate visible from the rear of the vehicle, travel trailer or
18 commercial trailer. Such license plate shall expire on December 31
19 of each year. When the vehicle, travel trailer or commercial
20 trailer is parked on the dealer's licensed place of business, it
21 shall not be required to have a license plate of any kind affixed.
22 A dealer shall obtain from Service Oklahoma at a cost of Ten Dollars
23 (\$10.00) a dealer license plate for demonstrating, transporting or
24 any other normal business of a dealer including use by an individual

1 holding a valid salesperson's license issued by the Oklahoma Used
2 Motor Vehicle, Dismantler, and Manufactured Housing Commission. Any
3 dealer who operates a wrecker or towing service licensed pursuant to
4 Sections 951 through 957 of this title shall register each wrecker
5 vehicle and display a wrecker license plate on each vehicle as
6 required by Section 1134.3 of this title. A dealer may obtain as
7 many additional license plates as may be desired upon the payment of
8 Ten Dollars (\$10.00) for each additional license plate. Use of the
9 used dealer license plate by a licensed dealer for other than the
10 purposes as set forth herein shall constitute grounds for revocation
11 of the dealer's license. Service Oklahoma shall design the official
12 used dealer license plate to include the used dealer's license
13 number issued to him or her each year by Service Oklahoma or the
14 Oklahoma Used Motor Vehicle, Dismantler, and Manufactured Housing
15 Commission.

16 B. Upon the purchase or transfer of ownership of an out-of-
17 state used motor vehicle, travel trailer or commercial trailer to a
18 licensed dealer, the dealer shall make application for an Oklahoma
19 certificate of title pursuant to the Oklahoma Vehicle License and
20 Registration Act, Section 1101 et seq. of this title. Upon receipt
21 of the Oklahoma certificate of title, the dealer shall follow the
22 procedure as set forth in subsection A of this section. Provided,
23 nothing in this title shall be construed as requiring a dealer to
24 register a used motor vehicle, travel trailer or commercial trailer

1 purchased in another state which will not be operated or sold in
2 this state.

3 C. Upon sale or transfer of ownership of the used motor vehicle
4 or travel trailer, the dealer shall place upon the reassignment
5 portion of the certificate of title a tax stamp issued by the county
6 treasurer of the county in which the dealer has his or her primary
7 place of business. The tax stamp shall be issued upon payment of a
8 fee of Three Dollars and fifty cents (\$3.50) and shall be in lieu of
9 the dealer's ad valorem tax on the inventories of used motor
10 vehicles or travel trailers but shall not relieve any other property
11 of the dealer from ad valorem taxation.

12 D. Upon sale of a used motor vehicle or travel trailer to
13 another licensed dealer, the selling dealer shall place the tax
14 stamp required in subsection C of this section upon the certificate
15 of title. The used dealer license plate or wholesale dealer license
16 plate shall be removed by the selling dealer. The purchasing dealer
17 shall, at time of purchase, place his or her dealer license plate on
18 the used motor vehicle, travel trailer or commercial trailer as
19 provided in subsection A of this section; provided, for vehicles,
20 travel trailers or commercial trailers purchased by a licensed used
21 dealer at an auction, in lieu of such placement of the dealer
22 license plate, the auction may provide temporary documentation as
23 approved by the Director of the Motor Vehicle Division of Service
24 Oklahoma for the purpose of transporting such vehicle to the

1 purchaser's point of destination. Such temporary documentation
2 shall be valid for two (2) days following the date of sale.

3 E. 1. The purchaser of every used motor vehicle, travel
4 trailer, or commercial trailer, except as otherwise provided by law,
5 shall obtain registration and title for the vehicle or trailer
6 within two (2) months from the date of purchase of same. It shall
7 be the responsibility of the selling dealer to place a temporary
8 license plate, in size similar to the permanent Oklahoma license
9 plate but of a ten-mil weatherproof plastic-impregnated paper
10 approved by the Oklahoma Used Motor Vehicle, Dismantler, and
11 Manufactured Housing Commission, upon a used motor vehicle, travel
12 trailer or commercial trailer when a transaction is completed for
13 the sale of such vehicle. Provided, upon a determination by the
14 Commission that there exists a national shortage of ten-mil
15 weatherproof plastic-impregnated paper, eight-mil weatherproof
16 plastic-impregnated paper may be approved by the Commission until it
17 has been determined by the Commission the shortage has ended. The
18 temporary license plate under this subsection shall be placed at the
19 location provided for the permanent motor vehicle license plate.
20 The temporary license plate shall show the license number which is
21 issued to the dealer each year by Service Oklahoma or the Oklahoma
22 Used Motor Vehicle, Dismantler, and Manufactured Housing Commission,
23 the date of expiration, and the company name of the selling dealer.

1 2. The Oklahoma Used Motor Vehicle, Dismantler, and
2 Manufactured Housing Commission is hereby directed to develop the
3 motor vehicle temporary license plate design to incorporate these
4 requirements in a manner that will permit law enforcement personnel
5 to readily identify the dealer license number and date of
6 expiration. The Oklahoma Used Motor Vehicle, Dismantler, and
7 Manufactured Housing Commission is hereby authorized to develop
8 additional requirements and parameters as deemed appropriate to
9 discourage or prevent illegal duplication and use of the temporary
10 license plate. Such motor vehicle temporary license plate shall be
11 valid for a period of ten (10) days from the date of purchase. Use
12 of the motor vehicle temporary license plate by a dealer for other
13 than the purposes set forth herein shall constitute grounds for
14 revocation of the dealer's license to conduct business. Purchasers
15 of a commercial trailer shall affix the commercial trailer temporary
16 license plate to the rear of the commercial trailer. The purchaser
17 of a motor vehicle shall display the motor vehicle temporary license
18 plate for a period not to exceed ten (10) days or until registration
19 and title are obtained as provided in this section. The purchaser
20 of a commercial trailer shall display the commercial trailer
21 temporary license plate for a period not to exceed two (2) months or
22 until registration and title are obtained as provided in this
23 section.
24

1 3. The provisions of this subsection on temporary licenses
2 shall apply to nonresidents who purchase a used motor vehicle,
3 travel trailer, or commercial trailer within this state that is to
4 be licensed in another state; provided, such purchaser attests that
5 such vehicle is to be titled and registered in a state other than
6 Oklahoma and provides proof of out-of-state residency, in such case,
7 no license plate shall be issued and instead a sixty-day nonresident
8 in-transit temporary license plate shall be issued at the time of
9 purchase upon presentment of proof of out of state residency to the
10 dealer that is consistent with purchaser information submitted
11 through pre-registration. The nonresident purchaser shall be
12 allowed to operate the vehicle or trailer within the state with a
13 temporary license plate for a period not to exceed ten (10) days
14 from date of purchase. Any nonresident purchaser found to be
15 operating a used motor vehicle, travel trailer, or commercial
16 trailer within this state after two (2) months shall be subject to
17 the registration fees of this state upon the same terms and
18 conditions applying to residents of this state. Additionally,
19 within two (2) business days of the date of the sale or transfer of
20 the vehicle or trailer, the parties shall submit the requisite
21 documentation to Service Oklahoma or licensed operator identifying
22 the vehicle or trailer subject to the sale or transfer, purchaser
23 information, and any associated license plate on the vehicle,
24 pursuant to the requirements of Section 1112.2 of this title.

1 F. It shall be unlawful for any dealer to procure the
2 registration and licensing of any used motor vehicle, travel trailer
3 or commercial trailer sold by the dealer or to act as the agent for
4 the purchaser in the procurement of the registration and licensing
5 of the purchaser's used vehicle, travel trailer, or commercial
6 trailer. A license of any dealer violating the provision of this
7 section may be revoked.

8 G. Dealers following the procedure set forth herein shall not
9 be required to register vehicles, travel trailers, or commercial
10 trailers to which this section applies, nor will the registration
11 fee otherwise required be assessed. Provided, dealers shall not
12 purchase or trade for a used motor vehicle, travel trailer, or
13 commercial trailer on which the registration therefor has been
14 expired for a period exceeding two (2) months without obtaining
15 current registration therefor.

16 H. A nonprofit charitable organization which is exempt from
17 taxation pursuant to the provisions of the Internal Revenue Code, 26
18 U.S.C., Section 501(c)(3), and which accepts donations of used motor
19 vehicles previously titled in Oklahoma to be subsequently
20 transferred to another owner, upon the qualifying organization
21 providing sufficient documentation of its tax-exempt status, may
22 obtain from Service Oklahoma charitable nonprofit organization
23 license plates for demonstrating, transporting, or test-driving
24 donated vehicles, provided that no organization shall possess or use

1 at any one time more than eight such plates. Service Oklahoma shall
2 design distinctive license plates for that purpose. The cost for
3 such plates shall be the same as provided in subsection A of this
4 section for dealer plates.

5 I. The transfer of ownership from the vehicle donor to the
6 qualifying nonprofit organization described in subsection H of this
7 section shall be made without the payment of motor vehicle excise
8 tax levied pursuant to Section 2103 of Title 68 of the Oklahoma
9 Statutes.

10 SECTION 4. AMENDATORY 47 O.S. 2021, Section 1137.3, as
11 last amended by Section 13, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
12 2025, Section 1137.3), is amended to read as follows:

13 Section 1137.3. A. 1. The purchaser of every new motor
14 vehicle, travel trailer, or powersports vehicle shall register or
15 license the same within two (2) months from the date of purchase.
16 It shall be the responsibility of the selling dealer to place a
17 temporary license plate, twelve (12) inch by six (6) inch size or in
18 a size similar to the permanent Oklahoma license plate but of a ten-
19 mil weatherproof plastic-impregnated paper approved by the Oklahoma
20 New Motor Vehicle Commission, upon a new motor vehicle, travel
21 trailer, or powersports vehicle when a transaction is completed for
22 the sale of such vehicle or trailer. Provided, upon a determination
23 by the Commission that there exists a national shortage of ten-mil
24 weatherproof plastic-impregnated paper, eight-mil weatherproof

1 plastic-impregnated paper may be approved by the Commission until it
2 has been determined by the Commission the shortage has ended.
3 Except for cab and chassis trucks, the temporary license plate under
4 this section shall be placed at the location provided for the
5 permanent motor vehicle license plate. The purchaser of a new cab
6 and chassis truck may place the temporary license plate under this
7 section in the rear window. The temporary license plate shall show
8 the dealer's license number which is issued to him or her each year
9 by Service Oklahoma, the date of expiration, and the company name of
10 the selling dealer. Additionally, within two (2) business days of
11 the date of the sale or transfer of the motor vehicle, the selling
12 dealer must submit the requisite documentation to Service Oklahoma
13 or a licensed operator identifying the motor vehicle subject to the
14 sale or transfer, purchaser information, and any associated license
15 plate on the vehicle, pursuant to the requirements of Section 1112.2
16 of this title.

17 2. The Oklahoma New Motor Vehicle Commission is hereby directed
18 to develop a temporary license plate design to incorporate these
19 requirements in a manner that will permit law enforcement personnel
20 to readily identify the dealer license number and date of
21 expiration. The Oklahoma New Motor Vehicle Commission is further
22 authorized to develop additional requirements and parameters
23 designed to discourage or prevent illegal duplication and use of the
24 temporary license plate. On or before ten (10) days from the date

1 of purchase of a new motor vehicle, travel trailer, or powersports
2 vehicle, the temporary license plate shall be removed and replaced
3 with a permanent, current Oklahoma license plate, unless:

4 a. the purchaser attests that such vehicle is to be
5 titled or registered in a state other than Oklahoma
6 and provides proof of out-of-state residency, in such
7 case, no license plate shall be issued and instead a
8 sixty-day nonresident in-transit temporary license
9 plate shall be issued at the time of purchase upon
10 presentment of proof of out of state residency to the
11 dealer that is consistent with purchaser information
12 submitted through pre-registration, or

13 b. the purchaser attests that such commercial vehicle is
14 to be titled or registered in a state other than
15 Oklahoma and has a valid Manufacturer Fleet Number, in
16 such case, no license plate shall be issued and
17 instead a ninety-day commercial fleet temporary
18 license plate shall be issued at the time of purchase
19 upon presentation of the valid Manufacturer Fleet
20 Number to the dealer.

21 Use of such temporary license plate by a licensed dealer for
22 other than the purpose of normally doing business shall constitute
23 grounds for revocation of the dealer's license.

1 B. It shall be unlawful for any licensed dealer of new motor
2 vehicles, travel trailers, or powersports vehicle to procure the
3 registration and licensing of any new motor vehicle, travel trailer,
4 or powersports vehicle sold by the licensed dealer or to act as the
5 agent for the purchaser in the procurement of the registration and
6 licensing. The license of any licensed dealer of new motor
7 vehicles, travel trailers, or powersports vehicle violating the
8 provisions of this section shall be revoked.

9 SECTION 5. This act shall become effective November 1, 2026.

10
11 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
12 OVERSIGHT, dated 02/26/2026 - DO PASS, As Amended and Coauthored.
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